

4/30/2008

Jeff Fisher
Permits Section
Water Bureau

Subject: Draft NPDES Permit – MI0020257

Dear Mr. Fisher,

After carefully reviewing the City of Cadillac's draft permit three main areas of concern were determined. Our concern's center on three parameters and they are as follows:

1. CBOD5: May 1 – Nov 30; monthly average of 4.0 mg/l.
2. Ammonia Nitrogen : May 1 – Nov 30; monthly average of 0.5 mg/l
3. Wet testing: Monthly testing with both species and a numerical limit on chronic.

Upon reviewing our data for the past four years, we found that we would have had a violation of the above CBOD5 portion of the proposed NPDES permit, on our monthly DMR report, 10.7% of the time. For ammonia nitrogen, we would have had a violation , on our monthly DMR report, 14.2% of the time. A further concern about the preceding test parameters is that the preceding projected violations were determined off our current plant flow. This flow is only 68% of our design flow. The City of Cadillac can not accept a permit with the indicated reduction in limits that presents the very serious potential for permit non-compliance now or in the future.

The WET test parameter presents three issues; frequency of testing, use of two species each testing cycle and the actual chronic limit of 1.1 TUc. There is no room for error on this test. If we have an actual positive result, no matter how close to detection limit, we would be in violation of our new permit. The testing of multiple species and the testing frequency will increase the cost of this test by 600% per year. This is a substantial increase in laboratory cost for just one test.

These are our current concerns. If you have any questions please feel free to contact me.

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Cadillac Water Resources Supervisor
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